

JJ PREMIER GROUP

GUIDE NO. 07

Condo documents after the 2022 law, explained

The two documents Florida's 2022 condo law created, what changed about reserves, and what to ask for before you buy.

BY JESSICA GARZA · UPDATED OCTOBER 2, 2026 · 10 MIN READ

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Inside this guide

01 Two documents the 2022 law created

02 The milestone inspection

03 The reserve study, and the parts it covers

04 What changed about reserves

05 The documents to ask for

06 The clocks

07 Before you make an offer

08 Your notes for one building

01

Two documents the 2022 law created

In 2022, Florida passed a new law for condo buildings. It created two documents. Ask for both before you buy.

Picture a tower on the bayfront. It's forty years old. From the street it looks fine. But you can't see most of what holds it up and keeps it dry. That includes the columns and the pipes inside the walls.

For years, a buyer had no easy way to know the state of those parts. And the owners could vote to save nothing for them. The dues stayed low, and the building got older.

In May 2022, the Florida Legislature changed that. The new law requires two things for a condo building of three stories or more.

The first is a milestone inspection. An engineer or architect checks the building's structure. The second is a structural integrity reserve study. It says what the building's main parts will cost to replace, and how much to save each year. This guide calls it the reserve study.

The law has been changed several times since. This guide uses the rules as they stand in the 2026 Florida Statutes.

FIG. 01 · THE TWO DOCUMENTS

The inspection and the study

Each card is one document. Find out whether the building has both.

1

THE MILESTONE INSPECTION

A licensed engineer or architect checks the building's structure. Phase one is a visual check. Phase two is testing, if phase one finds substantial damage.

WHICH BUILDINGS NEED IT

- Condo and co-op buildings of three stories or more, at 30 years old, then every 10 years

WHAT YOU SHOULD GET

The inspector's summary, which every owner gets, and the full report

2

THE RESERVE STUDY

A study of the parts that keep the building standing and dry, with the cost to replace each one and the money to save each year.

WHICH BUILDINGS NEED IT

- Condo buildings of three stories or more, at least every 10 years

WHAT YOU SHOULD GET

The study itself, which the seller must give you, or a statement that there isn't one

People say SIRS for short. This guide says the reserve study.

SOURCE Florida Statutes 553.899 (2026); Florida Statutes 718.112(2)(g) (2026); Florida Senate, SB 4-D (2022), chapter 2022-269

02

The milestone inspection

A milestone inspection is a structural check of the building. The first one is due when the building turns 30, then every 10 years.



The rule covers condo and co-op buildings of three stories or more. The clock starts on the day the building got its certificate of occupancy. That's the paper that said it was ready to live in.

The first inspection is due by December 31 of the year the building turns 30. After that, it's due every 10 years.

The local building office can set the clock at 25 years instead. It can do that where local conditions call for it, such as being near salt water. On the bayfront and the keys, ask which clock the building is on.

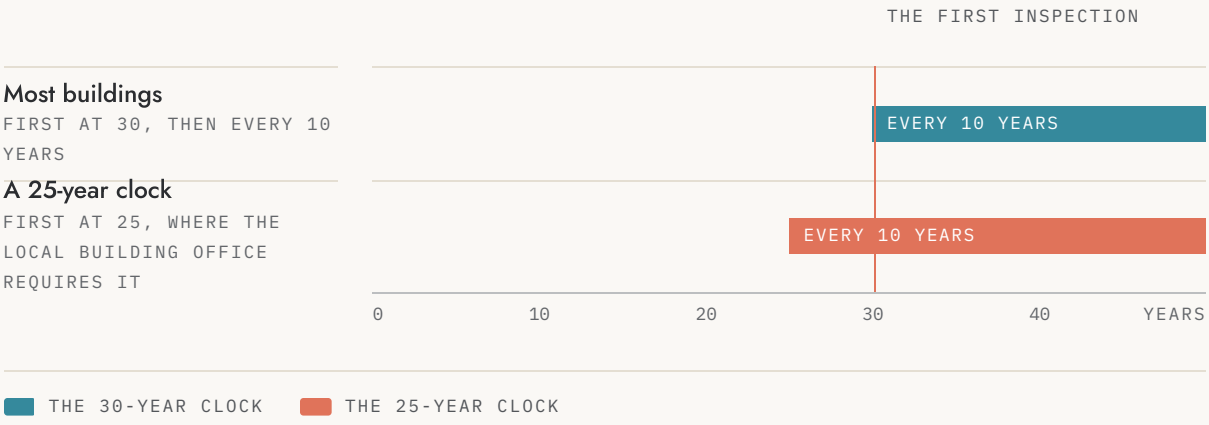
The inspection has two phases. Phase one is a visual check of the whole building by an engineer or architect. If it finds substantial damage to the structure, phase two follows, with testing.

The association then has 45 days to send the inspector's summary to every owner. It must post it in the building too. Ask the seller for the summary. Ask for the full report as well.

FIG. 02 · THE CLOCK

When the inspections are due

The axis is the building's age. Each bar starts at the first inspection and runs on, with one every 10 years.



Buildings that were already past 30 when the law passed had earlier deadlines, in 2024 and 2025. Those dates have passed. If an older building has no inspection yet, ask why.

SOURCE Florida Statutes 553.899(3) and (9) (2026)

03

The reserve study, and the parts it covers

The reserve study looks at the parts that keep the building standing and dry. It says what they'll cost, and what to save.

Every condo building of three stories or more must have a reserve study at least every 10 years. A licensed engineer or architect, or a certified reserve specialist, must do the study or check it.

The study must cover seven kinds of parts, from the roof to the windows. The drawing below shows them.

For each part, the study says how long it should last and what it will cost to replace. It also says how much to save each year. Any other costly item whose failure would harm those parts counts too.

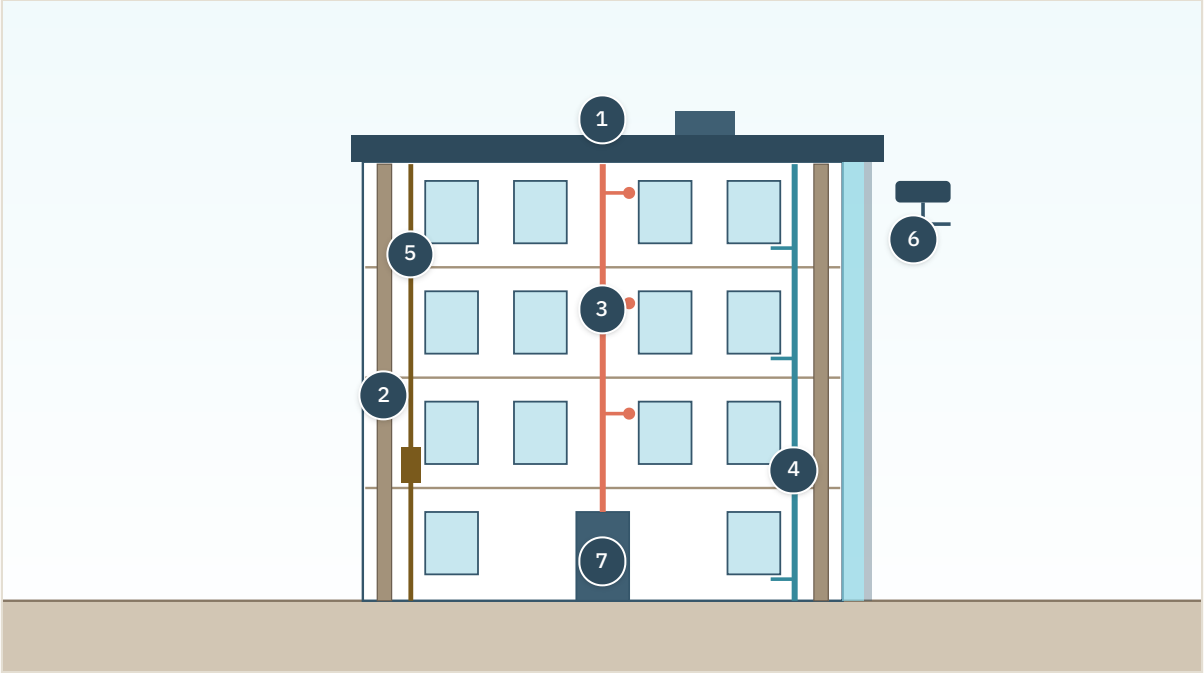
An owner-run association that existed by July 1, 2022 had until the end of 2025 to finish its first study. A building whose milestone inspection was due by the end of 2026 could do both at once. Within 45 days of getting the study, every owner must get a copy, or a notice that it's ready.

Ask for it by name. If the association doesn't have one, the seller must give you that statement in writing.

FIG. 03 · THE PARTS

The seven parts the study must cover

The numbers on the drawing match the list under it.



1. **The roof**
2. **The structure**
   Including the walls and beams that carry the weight
3. **Fireproofing and fire protection**
4. **Plumbing**
5. **Electrical**
6. **Waterproofing and exterior painting**
7. **Windows and exterior doors**

The drawing shows the idea, not a real building. The law adds an eighth item: any other costly part whose failure would harm these seven.

SOURCE Florida Statutes 718.112(2)(g) (2026)

04

What changed about reserves

Owners used to vote to save nothing for the big repairs. For the parts in the study, they can't anymore.

Reserves

Money the association sets aside each year for big repairs later. The budget shows how much goes in. The reserve study says how much should.

SOURCE Florida Statutes 718.112(2)(f) and (g) (2026), reserves and the structural integrity reserve study

For years, condo owners could vote each budget to save less than needed, or nothing. Picture a roof two years past its life, and an empty fund to replace it.

That vote is now gone for the parts in the reserve study. For any budget adopted on or after December 31, 2024, the owners can't vote to skip or lower those reserves. This applies to every building that needs a study. An association that runs more than one condo can skip them only if the state has approved another way to pay.

They can still vote to lower reserves for other things, by a majority of all the owners. So read the budget line by line.

The law gives the owners two ways to ease the cost. First, suppose the building had a milestone inspection in the last two years. Then a majority of all owners can let the board pause or lower reserve payments. The pause can last up to two budgets, and the money must go to repairs the inspection called for. This option runs through budgets adopted by the end of 2028.

Second, the reserves can be paid for with a loan or a line of credit, not just with dues. That also takes a majority of all owners. Either way, the money is still owed later. Ask how and when it will be paid back.

FIG. 04 · THE VOTE

What the owners can and can't vote down

Read each side. The left side is fixed by law. The right side is up to the owners each year.

CAN'T BE SKIPPED

Reserves for the parts in the study

- The roof, the structure, fire protection, plumbing, electrical, waterproofing and paint, windows and doors
- For every budget adopted on or after December 31, 2024
- The owners can vote a pause of up to two budgets, to pay for repairs a milestone inspection called for

CAN STILL BE VOTED DOWN

Reserves for everything else

1. Items the study doesn't cover
2. By a majority of all the owners, each budget
3. Read the budget to see what they chose this year

A pause means less money saved for those parts. If the building is on a pause, ask when it ends and how the fund will catch up.

SOURCE Florida Statutes 718.112(2)(f) (2026)

05

The documents to ask for

Florida law lists the documents a condo seller must give you. Ask for all of them, plus the estoppel certificate.

When you buy a condo from an owner, not a developer, Florida law lists what the seller must give you. The list starts with the rules of the building: the declaration, the articles, the bylaws and the rules.

Then the money: last year's financial statement and this year's budget. Then the building: the inspection summary, the reserve study, and any turnover report. If there's no study, the seller gives you a statement saying so.

Last, a sheet called Frequently Asked Questions and Answers, with the basics about the building.

Order the estoppel certificate too. That's a signed statement of what the seller owes and what comes with the unit. The association issues it. It lists fees due at the sale, open rule violations, and whether the board must approve you.

If the condo has 25 or more units, these documents must be on its website or app. They sit behind an owner login. Ask the seller to pull them for you.

FIG. 05 · THE LIST

The resale documents, by name

Tick each one as it arrives. The last one you order yourself.

- ☐ 01 **The declaration of condominium**
  The recorded document that creates the condo and sets the owners' rights.
- ☐ 02 **The articles of incorporation and the bylaws**
  How the association is set up and run.
- ☐ 03 **The rules of the association**
  Pets, rentals, parking, and the rest.
- ☐ 04 **The annual financial statement and the annual budget**
  Read the reserve lines next to the study.
- ☐ 05 **The milestone inspection summary**
  And the full report, from the association's records.
- ☐ 06 **The reserve study, or a statement that there isn't one**
  Ask for it by its legal name: the structural integrity reserve study.
- ☐ 07 **The turnover inspection report, if there was one after July 1, 2023**
  A report made when the developer handed the building to the owners.
- ☐ 08 **The Frequently Asked Questions and Answers sheet**
  The association's short answers about the building.
- ☐ 09 **The estoppel certificate**
  Not on the seller's list. Order it from the association yourself.

SOURCE Florida Statutes 718.503(2)(a) (2026); Florida Statutes 718.116(8) (2026)

06

The clocks

Once you have the documents, the law gives you a short time to cancel. Other clocks run on the association.

Your resale contract must say this, in type that stands out: you can cancel within 7 days of signing and getting the documents. Weekends and legal holidays don't count. The right ends at closing.

So the day you get the full set, the clock starts. Read everything in those 7 days. Ask for help if you need it.

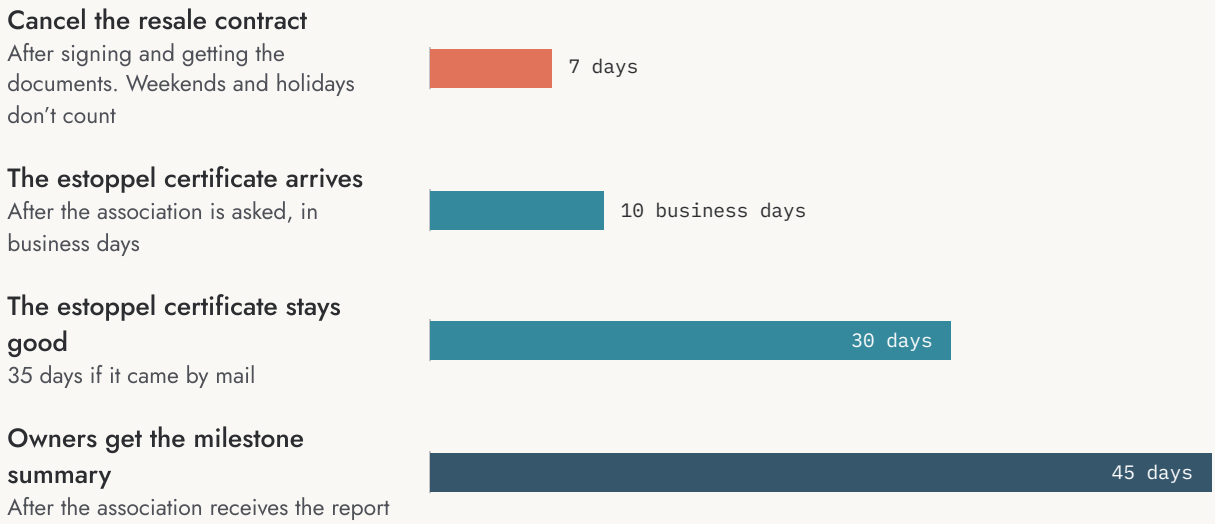
The estoppel certificate has a clock too. Once asked, the association has 10 business days to issue it. It stays good for 30 days, or 35 if it came by mail. Ask for it early.

A buyer who relies on the certificate can't be charged more than it says. And remember: a new owner can be made to pay what the seller left unpaid, dues and special assessments alike. The certificate is how you find out.

FIG. 06 · THE CLOCKS

How many days each clock gives you

One bar for each clock. The first one is yours. The rest run on the association.



Business days skip weekends and holidays. The 7-day clock skips them too.

SOURCE Florida Statutes 718.503(2)(d) (2026); Florida Statutes 718.116(8) (2026); Florida Statutes 553.899(9) (2026)

07

Before you make an offer

Here are the questions to ask about any condo building of three stories or more. Each one has a yes or no answer, and a document that shows it.

FIG. 07 · THE QUESTIONS

Seven questions for the building

Answer each one from the documents, not from the listing.

1	**Has the building had its milestone inspection?** If it's past 30 years old, or 25 where the local building office set that clock.	☐ YES	☐ NO
2	**Did phase one find substantial damage to the structure?** If yes, ask for the phase-two report.	☐ YES	☐ NO
3	**Is there a reserve study less than 10 years old?** The structural integrity reserve study.	☐ YES	☐ NO
4	**Does this year's budget fund the reserves the study calls for?** Compare the two line by line.	☐ YES	☐ NO
5	**Is reserve funding paused or lowered right now?** If yes, ask when it restarts and how.	☐ YES	☐ NO
6	**Is a special assessment pending or planned?** The estoppel certificate lists what has been levied.	☐ YES	☐ NO
7	**Is the building paying off a loan or line of credit for repairs?** Ask what each unit's share is.	☐ YES	☐ NO

These are questions to ask, not a legal form. The documents in section 5 hold the answers.

SOURCE Each question comes from the section it sums up. The sources are listed there and at the end of this guide

If a building has a current inspection, a current study and the reserves the study calls for, you can see where it stands. If any of the three is missing, ask why before you make an offer.

08

Your notes for one building

Fill in the right side for the building you're looking at.

Address and unit	Write it here
Stories, and the year it was built	From the certificate of occupancy
Milestone inspection	Date, and phase two yes or no
Reserve study	Date, and who did it
Reserves funded as the study calls for?	Yes or no, from the budget
Reserve pause or loan	Yes or no, and when it restarts
Special assessments	From the estoppel certificate
Estoppel certificate ordered	The date
Last day to cancel	7 days after the documents arrive

Sources

1. Florida Senate, SB 4-D (2022 special session), chapter 2022-269, approved May 26, 2022
   www.flsenate.gov/Session/Bill/2022D/4D
2. Florida Statutes 553.899 (2026), mandatory structural inspections for condominium and cooperative buildings
   www.flsenate.gov/Laws/Statutes/2026/553.899
3. Florida Statutes 718.112(2)(f) and (g) (2026), reserves and the structural integrity reserve study
   www.flsenate.gov/Laws/Statutes/2026/718.112
4. Florida Senate, SB 104 (2026), chapter 2026-14, a reviser's bill with technical corrections only, effective May 12, 2026
   flsenate.gov/Session/Bill/2026/104
5. Florida Senate, CS/CS/HB 913 (2025), chapter 2025-175, effective July 1, 2025
   www.flsenate.gov/Session/Bill/2025/913
6. Florida Statutes 718.503 (2026), disclosure before a resale and the buyer's right to cancel
   www.flsenate.gov/Laws/Statutes/2026/718.503
7. Florida Statutes 718.116 (2026), assessments and the estoppel certificate
   www.flsenate.gov/Laws/Statutes/2026/718.116
8. Florida Statutes 718.111(12) (2026), official records and the association website
   www.flsenate.gov/Laws/Statutes/2026/718.111
9. Florida Senate, CS/CS/CS/HB 1021 (2024), chapter 2024-244, effective July 1, 2024
   www.flsenate.gov/Session/Bill/2024/1021

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Send us an address.

We'll help you get the documents for that building and read them with you. If you'd rather do it yourself, this guide is the order we'd do it in.

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